

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 5
August 20, 2026
8:30 AM/1:30 PM

1. FLETCHER ALFORD V. SHARI COVINGTON

25FL0047

On May 12, 2026, Respondent filed a Request for Order (RFO) seeking orders regarding custody, the minor's IEP, and attorney's fees. There are several Proofs of Service showing service of the FL-305 a Declaration of Shari Covington, Notice of Tentative Ruling, order to Child Custody Recommending Counseling (CCRC), and "remote appearance documents." However, there is no indication that the FL-300 was served. Nevertheless, Petitioner did file a declaration acknowledging receipt of a filed copy of the RFO therefore the court finds that Petitioner has actual knowledge of the RFO and any defect in service has been waived.

On May 15, 2026, Petitioner filed an RFO seeking an order for further discovery responses and sanctions. All required documents were served on May 29th.

On May 28, 2026, Respondent filed another RFO seeking reimbursement of child related expenses. She filed a declaration in support of her RFO on June 3rd. There is no Proof of Service for either document.

Petitioner filed his Income and Expense Declaration on June 5th. It was served on June 4th.

Respondent filed and served her Income and Expense Declaration on June 11th.

On June 29, 2026, Petitioner filed and served a Declaration of Attorney Re: Respondent's Failure to Previously Serve Documents Presented to Rebecca Nelson, CCRC.

On June 30, 2026, Respondent filed and served Respondent Shari Covington's Declaration Regarding June 25, 2026 Child Custody Recommending Counseling.

The parties attended CCRC on June 25, 2026 and were unable to come to agreements. A report with recommendations was prepared on July 23, 2026. It was mailed to the parties on July 24th.

On July 22nd, the parties appeared before the court for a review hearing. At that time the court vacated the pending trial dates and set the issue of the pending 3111 evaluation to join the already pending RFO hearing.

Respondent filed a Responsive Declaration to Request for Order on August 3, 2026. It was served on August 1st.

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On August 7th, Petitioner filed and served a Memorandum of Points and Authorities Regarding Respondent's Failure to Comply with the California Rules of Court and Request to Remove her Request for Order from Calendar. It was filed and served concurrently with a Declaration of Fletcher Alford and a Responsive Declaration to Request for Order.

On August 10, 2026, Respondent' filed Respondent's Exhibits in Support of Respondent [sic] Declaration in Response to Child Custody Recommending Counselor's Report and Request for Educational Orders. It was served on August 1st.

Petitioner filed and served a declaration of Emily Rainey on August 10th.

Custody Evaluation

The parties are ordered to appear for the hearing to present argument on whether the 3111 evaluation should proceed.

Respondent's Requests for Order

Respondent's May 28th RFO is dropped from calendar due to failure to serve the filed moving papers.

In her May 12th RFO, Respondent is requesting temporary sole legal custody of the minors or, alternatively, final decision-making authority over assessments and completion of assessments (including the IEP) for the minors. She further requests \$25,412.50 in attorney's fees. The foregoing are the only requests made in Respondent's moving papers. In her FL-320 she adds additional requests including (1) order Hunter to attend the appropriate EGUSD special education program as determined through his IEP; (2) order Grace to attend Carroll Elementary School for the 2026-2027 school year; (3) adopt the proposed interim school-year parenting plan; and (4) grant respondent limited tie-breaking authority regarding educational and non-emergency medical decisions. All of these requests are denied as they are not properly before the court. Cal. Rule Ct. § 5.92(g)(2) ("[t]he responding party may request relief related to the orders requested in the moving papers...unrelated relief must be sought by scheduling a separate hearing using *Request for Order* (form FL-300)...")

Petitioner opposes the request as currently Hunter is not in school and there is no agreement as to whether or not he should start kindergarten next year. He further argues that completion of the IEP will jeopardize Hunter's current care through Maxim.

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Respondent's request for attorney fees is denied due to her failure to file the requisite FL-319 and FL-158.

Regarding the request to complete the IEP, that request is denied. As Petitioner notes, the minor is not yet enrolled in school and there is no agreement as to whether he will even begin kindergarten next year. Thus, the completion of an IEP is premature especially in light of the fact that doing so may cause the minor to lose his current care through Maxim. Respondent's request is therefore denied.

Petitioner's Request for Order

Petitioner is requesting the following orders: (1) An order compelling Respondent to serve further verified written responses to Petitioner's Demand for Supplemental Responses served on February 4, 2026, concerning Petitioner's Request for Production of Documents; (2) An order compelling Respondent to produce all responsive documents within her possession, custody, and control related to Respondent's supplemental responses; and (3) Sanctions pursuant to Civil Procedure § 2031.310(h) and Family Code § 271 in the amount of \$4,940.

Respondent has not opposed the requests. While she did file an FL-320 she did not address any of the discovery requests in her response.

Civil Procedure § 2031.050 affords each party the right to "...propound a supplemental demand to inspect, copy, test, or sample any later acquired or discovered documents, tangible things, land or other property, or electronically stored information in the possession, custody or control of the party on whom the demand is made." Civ. Pro. § 2031.050(a). Responses to a request for supplemental discovery are held to the same standard as initial responses including those set forth in Civil Procedure § 2031.210 et seq. Where responses are non-compliant the requesting party may file a motion to compel and seek sanctions. Civ. Pro. § 2031.310 & § 2031.320.

Here, after reviewing the discovery served and Respondent's responses, the court does find that her responses to the supplemental discovery requests were inadequate and not compliant with the law's requirement that responses are to be given in good faith and to the best of the responding party's ability. See *Deyo v. Kilbourne*, 84 Cal. App. 3d 771, 783 (1973). As such, Respondent is ordered to provide full and complete responses to Petitioner's Demand for Supplemental Discovery served on February 4, 2026. Responses are to include all documents responsive to the supplemental discovery demand which are in Respondent's possession, custody or control as required by the Civil Discovery Act.

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Regarding monetary sanctions, the request is granted, however, the court is not awarding the entirety of the requested amount. A party requesting sanctions for reasonable expenses that were incurred as a result of discovery abuse must already be liable for those expenses before the court can award the costs as sanctions. See *Tucker v. Pacific Bell Mobile Servs.*, 186 Cal. App. 4th 1548 (2010) (anticipated costs for future deposition could not be included in award of sanctions). Here, according to Petitioner's moving papers he incurred 3 hours of attorney's fees preparing the motion, 3 hours of paralegal fees and a \$90 filing fee. The remainder of the requested amount is associated with fees not already incurred therefore they are not recoverable at this time. Respondent is sanctioned \$1,965 pursuant to Civil Procedure § 2031.310(h) and Family Code § 271. This amount is to be paid directly to Petitioner's attorney. Sanctions may be paid in one lump sum or in monthly increments of \$163.75 commencing on September 1, 2026 and continuing until paid in full (approximately 12 months). If any payment is missed or late the entire amount shall become immediately due and payable with legal interest.

Petitioner is directed to prepare the Findings and Orders After Hearing (FOAH); however, this order is effective immediately upon the court's adoption of the tentative ruling and is not conditioned on the preparation of the FOAH.

TENTATIVE RULING #1: THE PARTIES ARE ORDERED TO APPEAR FOR THE HEARING TO PRESENT ARGUMENT ON WHETHER THE 3111 EVALUATION SHOULD PROCEED.

RESPONDENT'S MAY 28TH RFO IS DROPPED FROM CALENDAR DUE TO FAILURE TO SERVE THE FILED MOVING PAPERS. RESPONDENT'S REQUEST FOR ATTORNEY FEES IS DENIED DUE TO HER FAILURE TO FILE THE REQUISITE FL-319 AND FL-158. THE REQUEST FOR HUNTER TO COMPLETE AN IEP IS DENIED. ALL OF THE REQUESTS FOR AFFIRMATIVE RELIEF RAISED IN RESPONDENT'S FL-320 ARE DENIED AS THEY ARE NOT PROPERLY BEFORE THE COURT. THIS INCLUDES THE FOLLOWING (1) ORDER HUNTER TO ATTEND THE APPROPRIATE EGUSD SPECIAL EDUCATION PROGRAM AS DETERMINED THROUGH HIS IEP; (2) ORDER GRACE TO ATTEND CARROLL ELEMENTARY SCHOOL FOR THE 2026-2027 SCHOOL YEAR; (3) ADOPT THE PROPOSED INTERIM SCHOOL-YEAR PARENTING PLAN; AND (4) GRANT RESPONDENT LIMITED TIE-BREAKING AUTHORITY REGARDING EDUCATIONAL AND NON-EMERGENCY MEDICAL DECISIONS.

RESPONDENT IS ORDERED TO PROVIDE FULL AND COMPLETE RESPONSES TO PETITIONER'S DEMAND FOR SUPPLEMENTAL DISCOVERY SERVED ON FEBRUARY 4, 2026. RESPONSES ARE TO INCLUDE ALL DOCUMENTS RESPONSIVE TO THE

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SUPPLEMENTAL DISCOVERY DEMAND WHICH ARE IN RESPONDENT'S POSSESSION, CUSTODY OR CONTROL AS REQUIRED BY THE CIVIL DISCOVERY ACT.

RESPONDENT IS SANCTIONED \$1,965 PURSUANT TO CIVIL PROCEDURE § 2031.310(H) AND FAMILY CODE § 271. THIS AMOUNT IS TO BE PAID DIRECTLY TO PETITIONER'S ATTORNEY. SANCTIONS MAY BE PAID IN ONE LUMP SUM OR IN MONTHLY INCREMENTS OF \$163.75 COMMENCING ON SEPTEMBER 1, 2026 AND CONTINUING UNTIL PAID IN FULL (APPROXIMATELY 12 MONTHS). IF ANY PAYMENT IS MISSED OR LATE THE ENTIRE AMOUNT SHALL BECOME IMMEDIATELY DUE AND PAYABLE WITH LEGAL INTEREST.

PETITIONER IS DIRECTED TO PREPARE THE FINDINGS AND ORDERS AFTER HEARING (FOAH); HOWEVER, THIS ORDER IS EFFECTIVE IMMEDIATELY UPON THE COURT'S ADOPTION OF THE TENTATIVE RULING AND IS NOT CONDITIONED ON THE PREPARATION OF THE FOAH.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY PHONE CALL TO THE COURT AT (530) 621-6725 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; *SEE ALSO* LEWIS V. SUPERIOR COURT, 19 CAL.4TH 1232, 1247 (1999). NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY PHONE CALL OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07